

Court No. - 21

Case :- WRIT - C No. - 5716 of 2023

Petitioner :- Syed Naushad

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- CSC, Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Although several reliefs have been claimed in the writ petition but at the time of making oral submission, learned counsel for the petitioner states that he is not pressing the first prayer which is for quashing of notification dated 27.6.2006. He submits that the second prayer in relation to quashing of the recovery certificate is being pressed on the ground that the recovery certificate is wholly illegal and contrary to the provision of the Electricity Act, 2003.

Sri Narendra Kumar Tiwari, learned counsel appearing on behalf of the respondent no. 2 states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 20.2.2023

Arif

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)